

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

September 10, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Bargar v. Synapse Group, Inc. 2023-01342702	<u>Plaintiff's Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a claims-made class action settlement. The court has the following questions and comments: <u>As to the settlement:</u>

		1. The second addendum to the settlement agreement is not signed by defendant or defendant's counsel. 2. In the March 19, 2026 order (ROA 188), the court inquired about the provision in the first addendum to the settlement agreement stating that defendant "will fund the Settlement Fund . . . within fourteen (14) calendar days prior to the Effective Date." The court asked the parties to address the meaning of "within" in that sentence, i.e., may defendant fund the settlement fund on some date between one and 14 days before the Effective Date, but not 15 or more days before the Effective Date? The court also asked how the parties will know the Effective Date in advance, as it depends on, e.g., the date the court issues the final approval order and whether any class member appears at the final approval hearing to object? In the second supplemental brief (ROA 203), plaintiff states that the phrase "will fund the Settlement Fund . . . within fourteen (14) calendar days prior to the Effective Date" means "[d]efendant will agree to fund the Settlement Fund <i>no later than</i> 14 calendar days <i>prior</i> to the Effective Date." Second Supp. Brief (ROA 203) § II.C (at 2:22-23) (italics and bold in original). These statements are not the same, i.e., "within 14 days before the Effective Date" does not mean the same thing as "no later than 14 days before the Effective Date." If the parties have in fact agreed that defendant will fund the settlement no later than 14 days before the Effective Date, the settlement agreement should be amended to so state. The parties also have not explained how they will know the Effective Date in advance, e.g., if the court continues the hearing on the final approval motion because, for example, a class member appears at the hearing to object or the court determines supplemental information must be submitted. <u>As to the notice:</u> 3. The notice should be revised consistent with the above. 4. The Released Parties described in the first sentence of section 7 of the notice are inconsistent with the Released Parties in paragraph 30 of the first addendum and should be revised. 5. In section 17 of the notice, the second to last sentence in the first paragraph should be removed. 6. In section 21 of the notice, the second and third sentences should be removed. <u>As to the proposed order (ROA 197, 207):</u> 7. The proposed order should be revised consistent with the above.
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		8. Paragraph XV.B.iii of the proposed order should be removed. 9. On page 8 of the proposed order, the phrase “and deadline for a Notice of Intent to Appear” should be deleted. 10. Each exhibit to the proposed order should have an exhibit number, which should consecutive numbers (not a combination of letters and numbers, and not non-consecutive letters or numbers). The hearing on plaintiff’s motion for preliminary approval of a class action settlement is continued to <u>January 28, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than “amended settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice and to file a proof of service. No earlier hearing date is available for this motion.
2	Bitonti v. Teen Road to Safety Inc. 2023-01333703	<u>Plaintiffs’ Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs’ motion for final approval of an \$220,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement awards to plaintiffs (\$10,000 total); \$73,326.00 for attorneys’ fees; \$13,183.95 for litigation costs; \$4,000.00 for settlement administration costs; and \$10,000.00 total PAGA penalties (\$7,500.00 to the LWDA). The final accounting hearing is scheduled for <u>April 1, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
3	Borrego Water District v. All Persons 37-2020-00005776	<u>Borrego Springs Watermaster’s Motion to Amend Judgment</u>

		The Borrego Springs Watermaster moves to amend the judgment entered April 8, 2021 (ROA 338). No oppositions have been filed. For the following reasons, the Watermaster’s motion is granted. The Watermaster moves to amend the Groundwater Management Plan (GMP) attached as Exhibit 1 to the judgment to address seven “recommended correction actions” (RCAs) from the California Department of Water Resources (DWR) and to incorporate new data and information that has become available since the initial GMP. In June 2026, the Watermaster Board of Directors unanimously approved the Five Year Assessment and the 2026 GMP Update, which were submitted to DWR pursuant to Water Code section 10733.6(c) and DWR’s February 25, 2025 approval. Adams Decl. (ROA 687) ¶ 13. Pursuant to Code of Civil Procedure section 852, the court has continuing jurisdiction to modify or amend a final judgment “in response to new information, changed circumstances, [or] the interests of justice.” Section VII.A of the judgment states the court has “full jurisdiction, power and authority . . . to make such further or supplemental orders or directions as may be necessary or appropriate for . . . the modification, amendment or amplification [of] any of the provisions of this Judgment, or to add to the provisions hereof, consistent with the rights herein decreed.” Judgment (ROA 338) (Part 1, at 46). The Watermaster has demonstrated that the GMP attached as Exhibit 1 to the judgment should be amended as set forth in the 2026 GMP Update (ROA 686 (Ex. 1)). Adams Decl. (ROA 687) ¶¶ 4-13. The GMP attached as Exhibit 1 to the judgment (ROA 338) is amended as set forth in the 2026 GMP Update attached as Exhibit 1 to ROA 686. The Watermaster is ordered to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed September 2, 2026 (ROA 696), and based thereon continues the September 10, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
4	Carter v. Quantum Fuel Systems LLC 2023-01334066	Off calendar.
5	Carter v. Quantum Fuel Systems LLC 2024-01378128	Off calendar.

6	Cervantes v. Goton Tiles, Inc. 2024-01423863	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> Plaintiff Jennifer Cervantes moves for preliminary approval of a class action and PAGA settlement. Plaintiff's counsel states the settlement agreement is attached as Exhibit 1 to counsel's declaration. Robinson Decl. (ROA 62) ¶ 2. Exhibit 1 to counsel's declaration is the proposed class notice. The court has been unable to locate the settlement agreement in plaintiff's motion papers or elsewhere in the court file. Because plaintiff has not submitted a copy of the settlement agreement to the court, the court lacks sufficient information to evaluate the settlement. Plaintiff's motion for preliminary approval is denied without prejudice. Clerk to give notice.
7	Corral v. JMW Cabinets, Inc. 2024-01376239	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The "Released Parties" provision in paragraph 1.27 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "insurers," "affiliates," "entities (including those entities named as respondents and/or defendants in Plaintiff's LWDA letters or the Action)," "agents, attorneys, administrators, and representatives." 3. When is the aggrieved employees release effective? Settlement Agreement ¶ 5. The court will not require the aggrieved employees to release claims until defendant has fully funded the settlement. 4. The "Released PAGA Claims" provision in paragraph 5 is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties

		available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The phrase "in the Action" should be removed. 5. Defendant should advise, in a declaration filed with the court, whether, after making reasonable inquiry, and since the time the settlement agreement was executed, it is aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. Plaintiff's counsel's attorneys' fees totaling 33 1/3% of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount. Plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. 7. Plaintiff's counsel must submit an invoice substantiating the mediation charge (\$8,250). <u>As to the notice:</u> 8. The notice should be revised as necessary consistent with the above. 9. Section 5 of the notice letter states that if an aggrieved employee believes the PAGA pay periods used to calculate the employee's payment is incorrect, the employee should contact the settlement administrator within 30 days of the date of the notice letter. The settlement agreement does not appear to contain a provision addressing resolution of pay period disputes. How will the settlement administrator address any disputes? 10. The notice letter should provide the URL for case website maintained by the settlement administrator and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. 11. The italicized paragraph at the bottom of page 4 of the notice letter should be removed. 12. Should the notice letter be provided in any language other than English? If so, a certified copy of the translation should be attached as an exhibit to the proposed order and judgment. <u>As to the proposed order and judgment (ROA 46):</u> 13. The proposed order and judgment should be revised consistent with the above.
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		14. Counsel information should be removed from the caption page of the proposed order and judgment. 15. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). Paragraph 1 of the proposed order and judgment should be revised accordingly. 16. The proposed order and judgment should state that the judgment will be posted on the settlement administrator's website for at least 180 days. 17. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 18. The parties should propose a date for the final accounting hearing. The court holds final accounting hearings on Thursdays at 9:00 a.m. Paragraph 9 should be revised to stated that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>January 28, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See also Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	De La Cruz v. Laguna Cookie Company Inc. 2024-01381818	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$315,000 class action and PAGA settlement. The court grants the motion as follows: \$2,500 for enhancement award to plaintiff (not to exceed);

		\$94,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$7,490 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). The final approval hearing is scheduled for <u>February 18, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
9	Hernandez v. Islands Restaurants, L.P. 2023-01320258	Off calendar.
10	Martinez v. Auto International Insurance Agency Inc. 2022-01297545	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of an \$880,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the September 25, 2025 order (ROA 119), the court stated that the settlement agreement is undated. This has not been addressed. 2. In the September 25, 2025 order, the court stated that the parties should provide plaintiff's anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). Plaintiff has provided her anticipated individual class and PAGA payments, but has not stated whether she anticipates receiving any compensation for any individual claims. Does plaintiff anticipate receiving any compensation for any individual claims? 3. In the September 25, 2025 order, the court stated that the "Released Parties" provision in paragraph 1.41 of the settlement agreement was overbroad. The "Released Parties" provision in the amendment to the settlement agreement remains overbroad. The following unidentified, ambiguous and/or unrelated third parties should be removed: "consultants, partners," "joint venturers, agents," and "accountants, insurers, reinsurers, and/or legal representatives." 4. In its September 25, 2025 order, the court stated that while it will not determine the amount of attorneys' fees to be

		awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel did not address this issue in the supplemental papers or identify any unique circumstances warranting the higher amount of attorneys' fees counsel seeks. The court preliminarily finds attorneys' fees not to exceed \$264,000 reasonable in this case. 5. In its September 25, 2025 order, the court stated nonrecoverable items such as postage, mailing and legal research charges should not be included in plaintiff's request for reimbursement of litigation costs. Plaintiff's counsel seeks \$15.88 in postage, which should be removed. Supp. Lazar Decl. ¶ 6 & Ex. 4. Plaintiff's counsel should provide invoices for the mediation charge (\$10,450) and the charge for "Analysis" payable to "United States Postal Service" (\$11,900). Plaintiff's counsel should also explain the necessity and reasonableness of the costs incurred for "Analysis" payable to "United States Postal Service." 6. In its September 25, 2025 order, the court stated while it will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The court also stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court stated that it is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. In the supplemental papers, plaintiff did not identify any unique circumstances warranting the \$7,500 enhancement payment plaintiff seeks. In addition, plaintiff's counsel's statement in her supplemental declaration that "the requested enhancement award is not consideration in exchange for Plaintiff's general release because the amount is subject to Court approval" (Supp. Lazar Decl. (ROA 142) ¶ 19) is inconsistent with plaintiff's moving papers (Brief (ROA 106) at 18:25-26 ("Plaintiff is entitled to an enhanced award . . . for providing Defendant with a more expansive release of claims, including a waiver based upon California Civil Code section 1542, in exchange for the enhancement award.")) and with plaintiff's counsel's July 28, 2025
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		declaration (Lazar Decl. (ROA 104) ¶ 39 ("Plaintiff is entitled to a Class Representative Service Payment . . . for providing Defendant with a more expansive release of claims, including a waiver based upon California Civil Code section 1542, in exchange for the Class Representative Service Payment.")). The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable in this case. <u>As to the notice:</u> 7. The notice should be revised consistent with the above. 8. In the September 25, 2025 order, the court stated that the title of the notice and throughout the document should include "and PAGA" after "class" and before "settlement." The phrase "and PAGA" should be inserted after "class action" and before "settlement" in the gray box at the top of page 1 of the notice, and after "class action" and before "litigation" in the second sentence of the paragraph immediately below the gray box. <u>As to the proposed order (ROA 140, 148):</u> 9. The proposed order should be revised consistent with the above. 10. The settlement agreement and any amendments thereto and the class notice packet (in English and Spanish) should be attached to the proposed order as exhibits, not submitted as a separate document from the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 4, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
11	Montes v. Restoration Hardware, Inc. 2025-01534796	Off calendar.
12	Ramirez v. Golden Glass, Inc.	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u>

	2024-01421622	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$542,500 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The amendment to the settlement agreement is not signed by defendant or defendant's counsel. 2. In the April 16, 2026 order (ROA 69), the court stated that it prefers a 60-day period for the submission of exclusions, objections and disputes. The parties amended portions of the settlement agreement to address this issue, but paragraph 7.4.4 has not been amended and should be to conform with the other amendments to the settlement agreement. 3. The parties appear to have amended paragraph 5 of the settlement agreement to remove and/or change the effective date of the class and PAGA releases. The court will not require the class members and aggrieved employees to release their claims before defendant fully funds the settlement. Paragraph 5 should be revised accordingly. 4. The amendment to the settlement agreement appears to include two versions of paragraph 5.3. The settlement agreement should be amended to include only one version of paragraph 5.3. In addition, paragraph 5.3 (as amended) should not contain an ellipsis; it should state the entire release. 5. Paragraph 5.2 (as amended) should not contain an ellipsis; it should state the entire release. In addition, the following phrase should be removed from paragraph 5.2: "and all claims for liquidated damages, civil penalties, interest, fees, and costs based on the foregoing." 6. As stated in the April 16, 2026 order (ROA 69, No. 16), the last sentence of paragraph 7.8.3 of the settlement agreement should be revised. 7. In its April 16, 2026 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. The circumstances stated in the Supplemental Bokhour Declaration (ROA 74 at ¶¶ 22-24) are not unique. The court preliminarily finds attorneys' fees not to exceed \$162,750 reasonable in this case.
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		8. In its April 16, 2026 order, the court stated while it will not determine the amount of any enhancement award for plaintiff until final approval, it is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The court also noted that the settlement agreement states the enhancement award is the consideration for plaintiff providing a general release of claims and a section 1542 waiver (Settlement Agreement ¶ 5.1; see also Brief (ROA 59) at 9:3-4). The court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general, and that the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. Plaintiff's counsel states plaintiff now seeks \$5,000 as an enhancement payment. The circumstances stated in plaintiff's counsel's supplemental declaration (Supp. Bokhour Decl. (ROA 74) ¶¶ 26-27) are not unique, and plaintiff has not addressed the issue raised by the court, i.e., that the settlement agreement states the enhancement award is the consideration for plaintiff providing a general release of claims and a section 1542 waiver. Settlement Agreement ¶ 5.1; see also Brief (ROA 59) at 9:3-4. The court remains unlikely to approve a settlement that provides an enhancement award in exchange for a general release. <u>As to the notice:</u> 9. The notice should be revised consistent with the above. 10. The effective date of the class release stated in section 3(9) of the notice is inconsistent with the with the settlement agreement and should be revised. 11. Section 3(10) of the notice should state the effective date of the PAGA release. <u>As to the proposed order (ROA 72, 78):</u> 12. The proposed order should be revised consistent with the above. 13. Only one copy of the notice should be attached as an exhibit to the proposed order. Superseded and/or duplicative copies of the notice should not be attached to the proposed order as exhibits.
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13	Reyes v. DMS Building Maintenance, Inc. 2019-01077939	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of an \$715,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The definition of "Agreement" or "Settlement" or "Settlement Agreement" in paragraph 3 of the second amendment to the amended settlement agreement should include amendments to the settlement agreement. 2. In the March 19, 2026 order (ROA 316), the court stated that the "PAGA Claims" provision in paragraph 23 was overbroad to the extent it defines the aggrieved employees' PAGA release. Settlement Agreement ¶ 49. The court stated that releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The "PAGA Claims" provision in the second amendment to the amended settlement agreement remains overbroad. Paragraph 23 of the second amendment should be revised as stated in the March 19, 2026 order. The notice should also be revised accordingly. 3. In the March 19, 2026 order (ROA 316), the court stated that the "Released Claims" provision in paragraph 31 was overbroad. The court stated that the release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the

		lawsuit based on the facts alleged in the operative complaint. The "Released Claims" provision in the second amendment to the amended settlement agreement remains overbroad. Paragraph 31 of the second amendment should be revised as stated in the March 19, 2026 order. The notice should also be revised accordingly. 4. Paragraph 55(a) of the second amendment contradicts paragraph 4 of the second amendment. 5. Paragraph 55(a) of the second amendment contains two "Error! Reference source not found" messages that should be addressed. 6. The following phrase should be removed from the last sentence in paragraph 59 of second amendment: "To the extent the Workweek Dispute cannot be resolved amongst the Parties, the Court will make a final and binding determination of any unresolved dispute and." 7. In the March 19, 2026 order (ROA 316), the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiffs' counsel has not identified any unique circumstances. The court preliminarily finds attorneys' fees not to exceed \$214,500 reasonable in this case. 8. In its March 19, 2026 order, the court noted that plaintiffs' counsel seeks costs not to exceed \$40,000 and stated that counsel should provide an itemized list of costs incurred to date. The court stated that nonrecoverable items such as postage, mailing and legal research charges should not be included. Plaintiffs' counsel's itemized costs include FedEx and scanning charges, which are not recoverable. Supp. Hawkins Decl. (ROA 328) Ex. A. In addition, why is the requested not-to-exceed amount (\$40,000) so much higher than plaintiffs' counsel's incurred costs? 9. In the March 19, 2026 order, the court stated that while it will not determine the amount of any enhancement award for plaintiffs until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiffs should address in the supplemental filing whether any such unique circumstances exist here. Plaintiffs have not identified any unique circumstances.
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		The court also stated that, for the reasons stated in the March 19, 2026 order, the court is unlikely to approve a settlement that provides enhancement awards in exchange for a general release. The parties have amended the settlement agreement to remove references to "General Release Payments" and statements that the enhancement awards are consideration for general releases, but plaintiffs still seek the same enhancement award (\$7,500 each), yet identify no other consideration for their respective general releases. The court preliminarily finds enhancement awards not to exceed \$2,500 to each of the two named plaintiffs (not to exceed \$5,000 total) reasonable in this case. <u>As to the notice:</u> 10. The notice should be revised consistent with the above. 11. In the title of section 2, the word "Actions" should be replaced with "Action." 12. The word "a" should be inserted after "McKelvey" and before "class action mediator" in section 4 of the notice. 13. The objection form should be formatted to fit on one page. The hearing on plaintiffs' motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 4, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
14	Truelove v. Hardin Automotive 2021-01201227	Off calendar.
15 2:30 p.m.	Crisostomo v. Earthco Commercial Landscape 2024-01394751	<u>Attorneys Frontier Law Center's Motion to be Relieved as Counsel</u> Attorneys Frontier Law Center move to be relieved as counsel for plaintiff Julio Crisostomo. California Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the

		materials submitted by the moving party, Attorneys Frontier Law Center, and finds that counsel has complied with the requirements of Rule 3.1362. The motion to be relieved as counsel is granted. The court's order shall become effective upon the filing of a proof of service showing service of the order on plaintiff Julio Crisostomo. The moving party, Attorneys Frontier Law Center, shall give notice of the court's order. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed August 19, 2026 (ROA 66), and based thereon vacates the September 10, 2026 status conference. An Order to Show Cause re Dismissal is scheduled for <u>December 3, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiff is ordered to appear. Failure to appear will result in dismissal of entire action. Clerk to give notice.
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